

23NWCV01361 23NWCV01361

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-07-31

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Case Number: 23NWCV01361 Hearing Date: July 31, 2026 Dept: C

SHAZIA AKMAL vs BMW OF

NORTH AMERICA, LLC, et al., Case No. 23NWCV01361

This lemon law action was filed on May 4, 2023 and set for trial on September 2, 2026. Defendant BMW of North America applies ex parte for an order advancing its Motion for Terminating Sanctions currently set for October 13, 2026, or in the alternative, continuing trial to allow the motion to be heard before trial. The motion for terminating sanctions is made on the grounds that Plaintiff has failed to comply with the court's February 5, 2026 order to produce Plaintiff's expert for deposition on February 27, 2026, and Plaintiff's vehicle for inspection on February 23, 2026. Defendant gave Plaintiff another chance after failing to comply with the court's orders, but Plaintiff then failed to produce the expert file prior to expert deposition on July 14, 2026, rendering Defendant unable to conduct the deposition. Defendant requests terminating sanctions, exclusion of Plaintiff's expert from trial and/or monetary sanctions in the amount of \$1,995.00. On February 5, 2026, during a hearing on Defendant's ex parte hearing to advance its Motion to Compel the Deposition of Plaintiff's Experts and Motion to Compel Vehicle Inspection, the parties stipulated that the vehicle inspection will occur on February 23, 2026 and the deposition of Plaintiff's expert will occur on February 27, 2026. The parties further stipulated that trial will be continued to 10:00 a.m. on September 2, 2026. No sanctions were imposed. (2/5/26 Minute Order.) Since then, Defendant's efforts to reschedule the expert deposition and the vehicle inspection have proved unsuccessful. (Sheehan Decl., ¶¶18-25.) The ex parte application is GRANTED in part. The motion for terminating sanctions is ADVANCED from October 13, 2026 to today and GRANTED in part. Monetary sanctions in the amount of \$1,995.00 are imposed upon Plaintiff and Plaintiff's Counsel, jointly

and severally, payable within 30 days. Plaintiff is ordered to produce Plaintiff's expert for deposition and Plaintiff's vehicle for inspection by no later than August 14, 2026. The August 19, 2026 Final Status Conference date and September 2, 2026 Trial date remain on calendar. Defendant to give notice.